

B48.

Para. 160A

Creditor's Bankruptcy Application Checklist

Case number:	HC/B []
Case title:	XXX v YYYY
Statutory Demand ("SD") <i>{This section may be left blank if the Claimant is not relying on s 312(a) of the Insolvency, Restructuring and Dissolution Act 2018 ("IRDA") in the bankruptcy application}</i>	
Details of the debt:	Amount of debt stated in SD: [] ☐ SD states the actual amount of debt accrued as at the date of the SD ☐ SD contains all other information required under r 64 of the Insolvency, Restructuring and Dissolution (Personal Insolvency) Rules 2020 ("PIR")
<i>Service of SD</i>	
Details of service:	Date of service: [] Time of service: [] <i>{This field may be left blank if service has been effected by post}</i> Mode of service: []
<i>Affidavit of service of SD</i>	
Exhibits copy of SD:	☐
Originating Application (Creditor's Bankruptcy Application) ("BA")	
Date filed:	Date of filing: [] ☐ BA was filed within 4 months from the date on which the SD was served or deemed served <i>{if the BA is based on non-compliance with an SD}</i> OR ☐ BA was filed within 4 months from the date on which the enforcement was completed <i>{if the BA is based on s 312(b) of the IRDA}</i>
Appointment of trustee(s) of the bankrupt's estate:	☐ Prayer for appointment of Private Trustee(s) in Bankruptcy is included in BA OR ☐ Official Assignee's written consent to act as trustee of the bankrupt's estate has been filed

Service of BA	
Details of service:	Date of service: [] ☐ Date of service of the BA is at least 7 clear days before the date of the hearing of the BA Time of service: [] {This field may be left blank if service has been effected by post} Mode of service: [] {Where substituted service is effected, please indicate the Order of Court number and date}
Affidavit of service of BA	
Date filed:	Date of filing: []
Exhibits:	☐ Exhibits a sealed copy of BA and supporting affidavit, with endorsement as to date/time of service ☐ Exhibits a sealed copy of the order for substituted service and any evidence of such service {where substituted service was effected}
Supporting Affidavit	
Information in supporting affidavit:	Actual amount of debt accrued as at the date of the BA: [] ☐ All information required under ss 310–311 of the IRDA and rr 70–75 of the PIR is stated in the supporting affidavit OR ☐ The following information required under ss 310–311 of the IRDA and rr 70–75 of the PIR is <u>not</u> stated in the supporting affidavit for the following reasons: {please specify what information is not included and why}
Affidavit of Non-Satisfaction of Debt (“ANS”)	
Information in ANS:	Date of latest ANS: [] Amount of debt that remains unsatisfied: []
Appointment of Private Trustee(s) in Bankruptcy	
Consent to act:	Date of filing of the Consent to Act as Trustee(s) in Bankruptcy: []
Insolvency Practitioner’s Licence(s):	Date of filing of Affidavit exhibiting Insolvency Practitioner’s Licence(s): [] Validity of Insolvency Practitioner’s Licence(s): From [] until [] for [name of Trustee] {to be repeated where there is more than 1 Trustee}
Debt Repayment Scheme (“DRS”)	
Debtor’s eligibility:	☐ Eligible to be considered for DRS ☐ Determined unsuitable for DRS. Date of Notice of Unsuitability: [] ☐ Ineligible to be considered for DRS because: {specify reasons}

I confirm that the information set out in this checklist is accurate and up to date as at the date on which this checklist is filed.

Signed:

Submitted by: [*Name of counsel*] for [*name of Claimant*]

Date: